ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	138th Commission Meeting
DATE:	2 August, 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Apprise regular HR updates - HRS *The Commission were apprised on the following from 109th HRC meeting:* - *The formation of the pre-moderation and moderation committees. The Committees excluded Dasho Chairperson, keeping provisions for appeals pertaining to moderation exercise.* - *The four Divisions to undertake pre-moderation at their divisional levels respectively;* - *Proposal to keep the results of the pre-moderation confidential;* - *Review of findings of the HR Audit on various HR areas and activities of the ACC undertaken between March 1, 2020 – July 1 2023. This included ineligible separation benefit sanctioned to Choki Wangmo, excess number of ESP, among others.* *The Commission discussed appointment of Kin Dorji as the acting Director of DoPE with the objective to promote intra as well as inter departmental coordination and collaboration of ideas, information, data, and capacities.*	**The Commission directed to use the IWPs as a basis for the pre-moderation for objective assessment of the performance and behavioral dispositions. Further, with regards to keeping the results confidential, the Commission reminded the Committees to ensure procedural fairness with clear, objective and transparent criteria and assessment procedures.** **With regards to ineligible separation benefit sanctioned to Choki Wangmo, the Commission noted that it was an inadvertent mistake, than an oversight, as also discussed in the HRC. However, the Commission directed HRO and HRS to be aware and informed of all the provisions of the BCSR, irrespective of it being in distinct chapters. To this, the HRS was directed to prepare comprehensive checklists of such provisions and share with CFS of MoF for strict compliance. While the RCSC does not require the payment to be recovered, the Commission directed the HRS to recover, being a law enforcement agency – to lead by example.** **Directed HRS to prepare comprehensive report on the HR Audit Observations in consultation with relevant Dept/Divisions.** **Further, directed HRC to:** - **initiate appointment of Kin Dorji as the acting Director of the DoPE.** - **review Kinga Rinzin's professional allowance vis-à-vis his nature of job.**
2	Apprise on Civic & Voter education program – ED, DoPE	**Noted.**

	ED apprised on the ToT workshop conducted for civic & voter education for NA elections conducted between 17 – 29 July 2023. Further, noted that the training for the FSPs to be launched on 11th August 2023.	
3	Apprise monthly status of Escrow Account – EMD, DoPS *It was apprised that the opening balance in the account was Nu. 13,851,843.69, and the closing balance was Nu. 12,230,940.63. This included total of Nu. 3,730,461.74 credited from administrative recoveries post investigations.*	**The Commission noted the update.** **Directed DoPS to review and revise the terminology currently being used for the post investigations administrative recoveries.**
4	Apprise BDBL systemic recommendations- CFD, DoPS *Presented systemic issues, recommendations and update on the six cases pertaining the BDBL. Further, the analysis of the 25 complaints against BDBL and its outcome was also presented, as attached.*	**The Commission directed the following:** - **CFD to follow-up on the systemic recommendations and pending post investigation ATRs related to six cases shared with the BDBL;** - **Further, CFD to review each of the recommendations to prepare for sensitizing the new management of the BDBL. Accordingly, DoPS to seek appointment for the presentation.** - **CFD to check the minutes of the Commission meeting on the case to review the decision related to Thinley Wangchuk.** **The Commission decided to review appeals of the individual concerned (Thinley Wangchuk) upon completion of the sensitization to BDBL's management.**
5	Present backlog complaints related to land – DoI, DoPS & LD *It was apprised that of the total 107 complaints qualified for investigation, 28 are related to land.*	**The Commission decided to review the 28 complaints related to land through mob-up operation in collaboration with the NLCS. To this, a team consisting of officials from LD, DoPS, and DoI, under the leadership of Commissioner Jamtsho, was directed to undertake the desk review and conduct further joint investigation with the NLCS and Dzongkhag concerned (where required).** **Further, directed DoPS and DoI to undertake preliminary assessment of other 79 backlog complaints qualified for investigation, to propose strategies to reduce the backlog.**
6	Follow-up presentation on OIP evaluation for the FY 2022-2023 – PD, DoPE *In continuation to 137th Commission meeting, the specific findings of the OIP*	**The Commission noted the findings and further directed the following:** - **Analyze the agency specific scores by target values and further analyze and correlate with its NIA score, type of IVS reports issued, and number of complaints;**

	evaluation for the FY 2022-2023 was presented, which compared the years' performances based on target values, and OIP scores with the last three FYs. It was noted that while the compliance has been improving, the quality of the performance has not been improving.	- **Given poor compliance to Integrity Vetting and Whistleblower guidelines in the armed forces, PD was directed to see how can these measures be mainstreamed in the armed forces;** - **PD to review the activities related to complaints management system, grievance redressal system and whistleblower protection for clarity of the implementing agencies.** **Approved the OIP system and GENTHRI (*Guide, Enable & Nurture organizations towards Transparency, Honesty, Reliability and Integrity*) as a theme for the OIP.**
7	Any other: - Apprise on revised structure of the Annual Report 2022-2023	**Approved the proposed structure with further directive to include on financial and human resource challenges and how ACC adapted with the constraints; roles of ROs; operational independence increasingly threatened with initiatives such as clustering services; collaboration with OAG, RMA, DRC, among others; and Myth Vs. Fact.**
	- QSM	**The QSM hereafter to be hosted as follows:** • **October – Bumthang** • **January – Phuentsholing** • **April – Trashigang** • **July – Thimphu**

Commissioner **Commissioner** **Chairperson**

xodo sign
by apryse

Audit Trail

Document Details

Title	Minutes- 138th Commission Meeting. doc.pdf
File Name	Minutes- 138th Commission Meeting. doc.pdf
Document ID	c608907c972441df9a3b409bcf9dedee
Fingerprint	de1974b5c1595aedad8229bbdf426e50
Status	Completed

Document History

Document Created	Document Created by Kinley Wangmo (kwangmo@acc.org.bt) Fingerprint: c2f9a2decb9a9c1d3e7990955dc7042c	Jan 16 2024 06:14AM UTC
Document Sent	Document Sent to A Karma Rinzin (akrinzin@acc.org.bt)	Jan 16 2024 06:14AM UTC
Document Viewed	Document Viewed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 119.2.118.121	Jan 18 2024 04:40AM UTC
Document Signed	Document Signed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 119.2.118.121 	Jan 18 2024 04:41AM UTC
Document Sent	Document Sent to Jamtsho (jamtsho@acc.org.bt)	Jan 18 2024 04:41AM UTC
Document Viewed	Document Viewed by Jamtsho (jamtsho@acc.org.bt) IP: 202.144.157.146	Jan 18 2024 07:50AM UTC
Document Signed	Document Signed by Jamtsho (jamtsho@acc.org.bt) IP: 202.144.157.146 	Jan 18 2024 07:52AM UTC
Document Sent	Document Sent to Deki Pema (dpema@acc.org.bt)	Jan 18 2024 07:52AM UTC
Document Viewed	Document Viewed by Deki Pema (dpema@acc.org.bt) IP: 202.144.157.146	Jan 18 2024 09:15AM UTC

Document Signed	Document Signed by Deki Pema (dpema@acc.org.bt) IP: 202.144.157.146 	Jan 18 2024 09:16AM UTC
Document Completed	This document has been completed. Fingerprint: de1974b5c1595aedad8229bbdf426e50	Jan 18 2024 09:16AM UTC

Processed by xodo sign